

ELIZABETH II



1981 CHAPTER xiv

An Act to repeal the Sion College Act 1956; and for other purposes. [11th June 1981]

WHEREAS—

(1) The President and Fellows of the College of Sion within the city of London (hereinafter called “the College”) was founded and constituted as a body corporate with a common seal by letters patent of His late Majesty King Charles the First dated the third day of July in the sixth year of his reign and confirmed by letters patent of His late Majesty King Charles the Second dated the twentieth day of June in the sixteenth year of his reign:

(2) By the said letters patent provision was made whereby all clergymen beneficed in parishes within the city of London, and in certain parishes contiguous with the boundaries of the city of London, are Fellows of the College and by the rules of the College certain clergymen beneficed or licensed within the province of Canterbury and other persons have been from time to time elected as Members of the College:

(3) The government of the College is vested in the President and Court of Governors of the College elected annually from among the Fellows of the College at a General Meeting of the Fellows:

(4) The objects of the College are the promotion of sound learning and brotherly intercourse among the Fellows and Members by the provision and upkeep of a library, by the holding of lectures and discussions and in other ways:

1846 c. 34.

1875 c. cxcix.
1884 c. v.

(5) By the said letters patent and by an Act passed in the Session held in the ninth and tenth years of the reign of Her late Majesty Queen Victoria and intituled "An Act for enabling the President and Fellows of Sion College within the City of London to raise Money by way of Annuity on Part of their Estates", the Sion College Act 1875 and the Sion College Act 1884 provision was made conferring certain limited powers on the College to acquire and hold lands notwithstanding the statute of mortmain, to sell lands and grant leases and to raise moneys by borrowing:

1956 c. li.

(6) By the Sion College Act 1956 the College was reconstituted with new powers and the said letters patent were partially revoked and the said Acts repealed:

(7) The College intend to make application for a Royal Charter to reconstitute and re-state the powers of the College and it is accordingly expedient that on the grant of such a charter the said Act of 1956 should be repealed:

(8) The purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Sion College Act 1981.

Interpretation.

2. In this Act unless the context otherwise requires—

"the appointed day" means such day as may be appointed under section 3 below;

"the Charter" means those provisions of the letters patent of 1664 which were continued in force by section 3 (2) of the Sion College Act 1956;

"the College" means the President and Fellows of the College of Sion within the city of London incorporated by the Charter;

"the letters patent of 1664" means the letters patent granted by His late Majesty King Charles the Second and dated the twentieth day of June in the sixteenth year of his reign confirming the letters patent granted by His late Majesty King Charles the First and dated the third day of July in the sixth year of his reign.

3.—(1) If Her Majesty is pleased to grant a Royal Charter to Appointed the College, the President and Court of Governors of the College day. may appoint a day (not earlier than the day on which it is granted) for the purposes of this Act.

(2) The College shall, not more than 14 days after the appointed day, publish in the London Gazette a notice stating the day so appointed.

4. On the appointed day the Sion College Act 1956 shall be Repeal.
repealed. 1956 c. li.

5. Notwithstanding anything in section 4 above, and subject to Continuation of Charter. the provisions of any further Royal Charter, the provisions of the Charter incorporating and constituting the College and providing for the common seal of the College and for other matters specified in the Schedule to this Act shall continue in force.

6. All costs, charges and expenses preliminary to and of and Costs of Act. incidental to the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the College out of the funds of the College.

Section 5.

SCHEDULE

PROVISIONS OF CHARTER

Charles the Second by the grace of God of England Scotland France and Ireland King Defender of the faith etc. To all to whom the present letters shall come greeting. We have inspected (an enrolment) of certain letters patent of incorporation bearing date at (Canterbury) on the third day of July in the reign of our most beloved father Charles late King of England in the sixth year of his reign made and granted to the President Deans Assistants and Fellows of the College of Syon within the City of London enrolled in the rolls of our chancery and there remaining on record in these words . . . The King etc. to all to whom etc. Greeting

Whereas Thomas White minister while he lived of the Holy Gospel and vicar of the Church of St. Dunstan in the West London left by his testament three thousand pounds for the acquisition of a house for the making of a College of Ministers Rectors (Readers) and Curates within the City of London and the suburbs of the same . . . and we by letters patent have founded a certain college of certain persons within the city aforesaid according to the intentions of the testament and subsequently the letters patent aforesaid for that they contained some things repugnant to the status jurisdiction and episcopal dignity of the Bishop of London which we do not wish and for other causes by the consideration of our Court of Chancery were annulled and revoked at our suit as is clear and manifest by that record remaining in our chancery. Nevertheless because as we are informed certain houses and buildings in the parish of St. Alphage by Cripplegate within our City of London for the making of a college and Almshouse and also for erecting and instituting a library in the same at the great cost of John Simson clerk one of the executors of the testament of the aforesaid Thomas White are prepared

Know ye that we of the said Thomas assenting to the will so far as circumstances permit to be done without damage of others or evacuation of the episcopal ecclesiastical jurisdiction do for ourselves our heirs and successors will grant establish and ordain that the aforesaid house and buildings in the aforesaid parish of St. Alphage by Cripplegate within the aforesaid City of London be henceforth a college which shall be designated by the name of the College of Syon within the City of London of all and singular Rectors and Vicars of Churches Readers and Curates within the City of London and the suburbs of the same city in some one of those Churches canonically instituted and having faculty to preach from the Bishop of London for the time being and residing (there) and constituted in the order of priest who shall be called by the name of the President and Fellows of the College of Syon within the City of London, of whom one shall be and shall be called the President of the same college and two others . . . shall be and shall be called Deans and four others shall be and shall be called Assistants and the rest of the aforesaid Rectors and Vicars Readers and Curates shall be and shall be called Fellows of that college . . . and we do found and constitute fully the College . . . aforesaid by these presents

We will also and do for our heirs and successors constitute and ordain that all and singular the Rectors Vicars Readers and Curates constituted

in the order of Priest canonically instituted in a church within the City of London and the suburbs of the same city or hereafter to be instituted and there resident and so long as they shall have been resident there shall be henceforth members of the College aforesaid and a Body Corporate and politic . . . and to prosecute and defend everywhere and to have a common seal and to change it at their pleasure and as often as it shall seem expedient to them and to act and do other singular things which other politic Bodies within our Kingdom of England are able to act and do . . .

SCH.
—cont.

We will also and for our heirs and successors do grant to William now Bishop of London and his successors that the said Bishop and his successors should be Visitors of this college aforesaid to visit that college as well in Head as in Members and to do all those things which to Visitors pertain to do as often as it shall seem to him to be expedient

We will also and by these presents for ourselves our heirs and successors do grant that these our Letters Patent or the enrolment of the same shall be in all things and through all things firm valid good sufficient and effectual in law towards and against us our heirs and successors as well in all our Courts or elsewhere within our Realm of England without any confirmations licences or tolerations from us our heirs or successors to be procured or obtained the statute concerning lands and tenements not to be placed to mortmain or any other statute Act ordinance provision thing cause or matter whatsoever to the contrary thereof in anything notwithstanding . . .

In testimony whereof Teste Rege at Canterbury on the third day of July on the sixth year of the reign of King Charles the first by writ of Privy Seal

We moreover have ordered the tenor of the premises to be exemplified by these presents at the request of Samuel Butler S.T.P.

In testimony whereof we have caused these our letters to be made patent

WITNESS myself at Westminster the twentieth day of June in the sixteenth year of my reign

GRIMSTON C.A.

Examined by us WA. LITTLETON
WILLM. CHILD Clerks

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British Railways (Pension Schemes) Act 1981

CHAPTER xv

ARRANGEMENT OF SECTIONS

Section

1. Short title.
2. Interpretation.
3. Appointed day.
4. Power to establish trust company.
5. Vesting.
6. Saving of Board's rights as employers.
7. Powers of investment.
8. Stamp duty and capital taxes.
9. Appointment of nominees.
10. Evidence of transfer of assets.
11. Costs of Act.

SCHEDULE—The Pension Schemes.



British Railways

(General Conditions) Act 1981

THE ACT

ARRANGEMENT OF SECTIONS

Section 1. The British Railways Board.
Section 2. The Board's functions.
Section 3. The Board's powers.
Section 4. The Board's duties.
Section 5. The Board's accounts.
Section 6. The Board's reports.

Section 7. The Board's officers.